

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

MYESHA GONZALES-WILLIAMS,

Petitioner

VS.

JOSEPH COLE,

Respondent

) Case Number: FPT-25-378730

) Hearing Date: August 18, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: MOTION TO SET ASIDE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Myesha Gonzales-Williams and Respondent Joesph Cole.
- 2) On 7/15/26, Respondent filed a Request for Order seeking to set aside default entered on 4/9/26 pursuant to Code of Civil Procedure section 473(b).
- 3) There is no Proof of Service on file indicating Petitioner was served with Respondent's 7/15/26 Request for Order.
- 4) Petitioner did not file a Responsive Declaration.

B. Findings and Order

- 1) The Court finds Respondent's 7/15/26 Request for Order was not served at least 16 Court days prior to the hearing date as required by Code of Civil Procedure section 1005(b).
- 2) As such, this matter is **continued 10/22/26 at 9 AM in Dept. 403** for lack of service.
- 3) At least 16 Court days prior to the next hearing date, Respondent shall file and serve on Petitioner the (a) 7/15/26 Request for Order, (b) Continuance Order contained herein, and (c) Tentative Ruling Instructions using a service method authorized by the Code of Civil Procedure (i.e., a

1 person over the age of 18 shall mail to Petitioner the (a) Request for Order, (b) Continuance
2 Order, and (c) Tentative Ruling Instructions, and then Respondent shall file form FL-335 (Proof
3 of Service) with the Court confirming service was effectuated).

4 4) At least 9 Court days prior to the next hearing date, Petitioner may file and serve a Responsive
5 Declaration.

6 5) At least 5 Court days prior to the next hearing date, Respondent may file and serve a Reply
7 Declaration.

8 6) The Court will prepare the Findings and Order After Hearing.
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